

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                |                                     |                                                                                                                                                                                                                       |
|---------------------------------------------------|------------------------------------------------|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Jessica Russo                    | Team:<br>Squad #10                             | CCRB Case #:<br>202207278           | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 10/26/2022 4:00 PM | Location of Incident:<br>2036 Amsterdam Avenue | 18 Mo. SOL<br>4/26/2024             | Precinct:<br>33                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Thu, 10/27/2022 8:01 PM  | CV Reported At:<br>CCRB                        | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Thu, 10/27/2022 8:01 PM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. PO Benjamin Roman  | 07119  | 955410 | 033 PCT |
| 2. DT3 Jonathan Perez | 06339  | 951041 | 033 DET |
| 3. LT Vladimir Garcia | 00000  | 941021 | 033 PCT |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. LT Christopher Doty | 00000     | 936514 | 033 DET  |

| Officer(s)             | Allegation                                                                         | Investigator Recommendation |
|------------------------|------------------------------------------------------------------------------------|-----------------------------|
| A . PO Benjamin Roman  | Abuse: Police Officer Benjamin Roman improperly used his body-worn camera.         | A . Substantiated           |
| B . DT3 Jonathan Perez | Force: Detective Jonathan Perez used physical force against § 87(2)(b)             | B . Unable to Determine     |
| C . PO Benjamin Roman  | Force: Police Officer Benjamin Roman used physical force against § 87(2)(b)        | C . Unable to Determine     |
| D . DT3 Jonathan Perez | Abuse: Detective Jonathan Perez stopped § 87(2)(b)                                 | D . Within NYPD Guidelines  |
| E . PO Benjamin Roman  | Abuse: Police Officer Benjamin Roman stopped § 87(2)(b)                            | E . Within NYPD Guidelines  |
| F . DT3 Jonathan Perez | Abuse: Detective Jonathan Perez frisked § 87(2)(b)                                 | F . Within NYPD Guidelines  |
| G . PO Benjamin Roman  | Abuse: Police Officer Benjamin Roman frisked § 87(2)(b)                            | G . Unable to Determine     |
| H . LT Vladimir Garcia | Abuse: Lieutenant Vladimir Garcia improperly used his body-worn camera.            | H . Unable to Determine     |
| I . DT3 Jonathan Perez | Abuse: Detective Jonathan Perez failed to provide § 87(2)(b) with a business card. | I . Substantiated           |

### Case Summary

On October 27, 2022, § 87(2)(b) filed this complaint with the CCRB via the on-line website, on behalf of her brother, § 87(2)(b).

On October 26, 2023, at approximately 4 p.m., Detective Jonathan Perez, of the 33<sup>rd</sup> Precinct Detective Squad, and Police Officer Benjamin Roman, of the 33<sup>rd</sup> Precinct, stopped § 87(2)(b) in front of 2036 Amsterdam Avenue, in Manhattan, by allegedly pushing him against a parked vehicle, without activating BWC (**Allegation A: Abuse of Authority-Improper use of body-worn camera, substantiated**) (**Allegations B and C: Force-Physical Force, unable to determine**) (**Allegations D and E: Abuse of Authority-Stop, within NYPD guidelines**). Det. Perez and PO Roman allegedly frisked § 87(2)(b) (**Allegation F: Abuse of Authority-Frisk, within NYPD guidelines**) (**Allegation G: Abuse of Authority-Frisk, unable to determine**).

§ 87(2)(b)'s two friends, § 87(2)(b) and § 87(2)(b) as well as Lieutenant Christopher Doty, of the 33<sup>rd</sup> Precinct Detective Squad, and Lieutenant Vladimir Garcia, of the 33<sup>rd</sup> Precinct, were also present for the stop. Lieutenant Garcia did not activate his BWC during this incident (**Allegation H: Abuse of Authority-Improper use of body-worn camera, unable to determine**).

Det. Perez did not provide § 87(2)(b) with a business card prior to concluding his involvement in the encounter (**Allegation I: Abuse of Authority-Failure to provide RTKA card, substantiated**).

The complainant, § 87(2)(b) was not present for this incident.

There were no arrests made or summonses issued as a result of this complaint.

The investigation was unable to obtain video footage capturing this incident. Det. Perez and Lt. Doty were not equipped with body-worn cameras, as they were assigned to the detective squad.

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Benjamin Roman improperly used his body-worn camera.**

**Allegation (B) Force: Detective Jonathan Perez used physical force against § 87(2)(b)**

**Allegation (C) Force: Police Officer Benjamin Roman used physical force against § 87(2)(b)**

**Allegation (D) Abuse of Authority: Detective Jonathan Perez stopped § 87(2)(b)**

**Allegation (E) Abuse of Authority: Police Officer Benjamin Roman stopped § 87(2)(b)**

**Allegation (F) Abuse of Authority: Detective Jonathan Perez frisked § 87(2)(b)**

**Allegation (G) Abuse of Authority: Police Officer Benjamin Roman frisked § 87(2)(b)**

**Allegation (H) Abuse of Authority: Lieutenant Vladimir Garcia improperly used his body-worn camera.**

§ 87(2)(b) (BR01) stated that he was wearing his school uniform, which consisted of black pants, black shoes, and a black crew-neck t-shirt. He had on a grey backpack. When crossing onto 160<sup>th</sup> Street, four officers rushed toward § 87(2)(b) and § 87(2)(b). PO Roman pushed § 87(2)(b) in the center of his back, causing him to collide with the parked vehicle that was about seven feet in front of him. PO Roman and Det. Perez placed § 87(2)(b) in handcuffs. PO Roman informed § 87(2)(b) that he was detained because he matched the description of the suspect of a shooting, which was a light skinned individual with black curly hair and a grey backpack. § 87(2)(b) acknowledged that he matched the description. PO Roman patted down § 87(2)(b)'s waist, legs, and thighs. § 87(2)(b) had his cellphone in his front-left pants pocket, which is the only thing that could have caused a bulge.

§ 87(2)(b) (BR02) stated that § 87(2)(b) was wearing a black sweatshirt and black sweatpants. When leaving a store on 2036 Amsterdam Avenue, about four police officers chased after § 87(2)(b) and § 87(2)(b). PO Roman grabbed § 87(2)(b)'s arm, placed him in handcuffs, and slammed him against a parked police vehicle. PO Roman turned § 87(2)(b)'s body

so that his back was facing the vehicle and patted down his waist and legs. The officers informed the males that § 87(2)(b) was stopped because he matched the description of the suspect of a crime, which was a light skinned individual with curly hair and a grey backpack.

§ 87(2)(b) (BR03) stated that § 87(2)(b) was wearing a burgundy shirt, a black long-sleeve shirt that covered the burgundy shirt, black jeans, and black shoes. When walking onto 161<sup>st</sup> Street, four officers ran toward the three males. PO Roman grabbed § 87(2)(b)'s backpack and pushed him onto a parked police vehicle. Det. Perez assisted PO Roman in handcuffing § 87(2)(b). Either PO Roman or Det. Perez patted down § 87(2)(b)'s pants and upper body. The officers informed the males that § 87(2)(b) was stopped because he matched the description of a shooter, who was a light-skinned, Latino boy, with curly hair, a black hoodie, black pants, and black shoes.

Det. Perez (BR04) stated that when he first learned of the shooting, the shooter was described as a light skin Hispanic male with curly hair, wearing a black and grey bookbag. The shooter ran northbound on 162<sup>nd</sup> Street, toward 163<sup>rd</sup> Street. There was an updated description of the shooter provided, indicating that he had on a tie die shirt and a different color backpack, but Det. Perez was not made aware of that update until he returned to the stationhouse much later. While downloading video footage of the encounter from a store on 2042 Amsterdam Avenue, Det. Perez observed the shooter, but was unable to confirm the description because of the distant camera. Det. Perez stood outside of the store while the video downloaded and observed § 87(2)(b) walking southbound on Amsterdam Avenue with two males. While about 15 feet away, Det. Perez observed that § 87(2)(b) matched the description of the shooter, as he was a light skin Hispanic male with curly hair, and a grey backpack.

Det. Perez and PO Roman walked behind the three males after observing him for about 10 seconds. The males walked at a standard pace and nothing else about their actions stood out to Det. Perez. Det. Perez was unsure how many officers joined him, apart from PO Roman, but he informed them that he wanted to stop § 87(2)(b) because he matched the description of the shooter and was at the location of the incident. In his experience, Det. Perez noted that offenders often return to the scene of the crime. Det. Perez slowly jogged and caught up to § 87(2)(b). Det. Perez told § 87(2)(b) to stop, and § 87(2)(b) complied. Det. Perez did not recall § 87(2)(b) making contact with any vehicles. § 87(2)(b)'s back was towards the vehicles and Det. Perez moved him to the position but was unsure which part of § 87(2)(b)'s body he came in contact with to turn him around. Det. Perez did not push § 87(2)(b) against the vehicles and § 87(2)(b) did not collide with any vehicles. Det. Perez did not slam § 87(2)(b) into a vehicle and no other officer did as well.

Given the nature of the crime involving a firearm, the officers handcuffed § 87(2)(b). Det. Perez did not recall if he or PO Roman handcuffed § 87(2)(b). Det. Perez and PO Roman frisked § 87(2)(b) for safety purposes. There was no visible indication that § 87(2)(b) was armed, including a bulge. Det. Perez first frisked the outer part of the backpack, while it was still on § 87(2)(b)'s person, and then § 87(2)(b)'s waistband and pants. There were hard objects in the backpack, but they felt like textbooks based on the boxy feel. Det. Perez did not open the backpack. PO Roman assisted by frisking the outermost garments, including his waistband and pants and maybe his backpack. The officers removed § 87(2)(b)'s handcuffs. Det. Perez explained the reason for the stop, showed him the ICAD with the description of the shooter, and released him.

PO Roman (BR05) stated that he began his tour early on the date of this incident, at about 3 p.m., and was assigned to public safety. At the time of the shooting, which was approximately 3:52 p.m., PO Roman was only equipped with his firearm. Just prior to running out of the command to respond to the shooting, PO Roman put on a t-shirt and grabbed a radio, leaving his BWC behind. Because of the speed of the situation, and because he was not taking any enforcement action, PO Roman did not bring his body-worn-camera with him.

When first learning of the shooting, PO Roman did not remember when the description of the suspect was provided. While reviewing surveillance footage with Det. Perez and Lieutenant Doty, Det. Perez saw a teenager outside of the location with two or three friends. Det. Perez said, "that's him right there." PO Roman continued watching the video but, soon after, observed Det.

Perez speed walking toward § 87(2)(b). After observing Det. Perez and Lieutenant Doty stopping § 87(2)(b), PO Roman approached. Det. Perez lightly placed his hands on § 87(2)(b)'s arms to stop him. Det. Perez escorted § 87(2)(b) to the corner of the street and placed him in handcuffs. § 87(2)(b) did not resist. Lieutenant Doty did not make physical contact with § 87(2)(b). PO Roman did not see § 87(2)(b) make physical contact with a vehicle during the stop.

PO Roman did not recall anyone frisking § 87(2)(b) nor did he observe any bulges or other indications that § 87(2)(b) was armed. While Det. Perez pulled up the ICAD to show § 87(2)(b) the description of the shooter, PO Roman held onto § 87(2)(b)'s arm and explained to him why he was stopped. § 87(2)(b) made a comment indicating that he did match the description of the shooter.

Lieutenant Doty (BR06) stated that when first learning of the shooting, he only recalled that it was a nonfatal shooting on 162<sup>nd</sup> Street and Amsterdam. There was eventually a description of the shooter provided, but Lieutenant Doty did not recall when he became aware of the information. When reviewing video footage, Det. Perez stated that he saw someone who matched the shooter's description—§ 87(2)(b). Det. Perez and PO Roman quickly walked out of the store to approach the males. Lieutenant Doty followed behind Det. Perez. Det. Perez dropped his handcuffs as he approached the males, which Lieutenant Doty stopped to pick up. By the time he caught up to the officers, the stop was already initiated. He did not recall observing the events leading to the stop, including if either officer made any physical contact with § 87(2)(b). He did not see any officer push § 87(2)(b) into a vehicle, or § 87(2)(b) making contact with a vehicle at all. Det. Perez and PO Roman placed § 87(2)(b) in handcuffs given that he was a suspect of a non-fatal shooting.

Lieutenant Doty primarily focused on the two males that § 87(2)(b) was with and did not witness the interactions between § 87(2)(b) and the other officers, including any frisks. He did not observe any indication that § 87(2)(b) was armed.

Once § 87(2)(b) was secured in handcuffs and Lieutenant Doty believed the situation was under control, he went to another discount store to view other video of the incident. He confirmed that the shooter was not § 87(2)(b). He called Det. Perez and told him to let § 87(2)(b) go, as he was not the individual they were looking for.

Lieutenant Garcia (BR07) stated that he learned of the shooting when he first arrived at the stationhouse, at approximately 4 p.m. He exited the command without his uniform and drove to the scene alone. He did not recall the description of the shooter when first learning about the shots fired incident. When reviewing video footage, Det. Perez left to approach a male and was joined by Lieutenant Doty and PO Roman. Lieutenant Garcia did not see how the stop initiated. He did not see how the stop initiated, including if § 87(2)(b) made contact with any cars. He did not observe a frisk. The officers allowed § 87(2)(b) to leave after a few minutes.

ICAD #§ 87(2)(b) (BR08) provides a description of the shooter at 15:59, noting that he is a Hispanic male, with light skin, curly hair, and a black and grey bookbag. At 16:01, an updated description was provided, noting that the bookbag was black and blue and the shooter was wearing a tie dye hoodie.

Stop Report § 87(2)(b) (BR 19) notes that when downloading video from 2042 Amsterdam Avenue, Det. Perez observed a male matching the description of the shooter—light skin Hispanic male with curly hair and black and grey backpack—walking about half a block away from where the shooting occurred. The male was frisked and detained for reasonable suspicion that he was possibly the shooter. No weapons were found.

Patrol Guide Procedure 212-123 (BR18) notes that officers are required to retrieve their assigned BWC from its docking station prior to roll call. After positioning the BWC in a manner that would facilitate an optimal recording field of view, officers are mandated to activate their BWC prior to engaging in any police action.

People v. Peterson, 110 A.D. 3d 1103 (BR09) found that in order to lawfully stop and detain a particular person, police officers must have reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor. When obtaining reasonable suspicion, officers must consider the similarities in provided descriptions of the

defendant, as well as their temporal and spatial proximity to the incident of the crime.

People v. Lambert 84 A.D. 2d 849 (BR10) found that a frisk of an individual reported to have fired a gun is proper when the individual is observed at a particular location and matches a unique description provided over a radio run. Under these circumstances, a frisk or limited search of defendant for weapons in order to protect the officers is reasonable, even absent any addition furtive movements or suspicious activity.

§ 87(2)(g)

. As such, it is recommended that **Allegation A** be **substantiated**.

§ 87(2)(g)

As such, it is recommended that **Allegations B** and **C** be closed as **unable to determine**.

§ 87(2)(g)

. As such, it is recommended that **Allegations D** and **E** be closed as **within NYPD guidelines**.

§ 87(2)(g)

As such, it is recommended that **Allegation F** be closed as **within NYPD guidelines**.

§ 87(2)(g)

As such, it is recommended that **Allegation G** be closed as **unable to determine**.

§ 87(2)(g)

. As such, it is recommended that **Allegation H** be closed as **unable to determine**.

**Allegation (I) Abuse of Authority: Detective Jonathan Perez failed to provide** § 87(2)(b) **with a business card.**

§ 87(2)(b) (BR01) stated that at the end of the encounter, PO Roman asked him if he wanted a business card. § 87(2)(b) said no because he did not know why he should take one. No other officer offered their business card to § 87(2)(b)

Det. Perez (**BR04**) stated that PO Roman offered § 87(2)(b) a business card but he said he was, “good.” Det. Perez did not offer § 87(2)(b) a business card because he declined PO Roman’s, it was not his case, and because he was concerned with making sure § 87(2)(b) did not have a weapon so offering a business card was the last thing on his mind.

NYPD Administrative Guide 304-11 (BR12) states that officers are required to offer a business card upon the conclusion of law enforcement activities, except when a summons is issued, an arrest is made, or exigent circumstances are present. Law enforcement activities that require a business card include, but are not limited to, home searches.

New York City Administrative Code 14-174 (BR11) “Identification of police officers” states, “During a law enforcement activity, an officer shall: 1. Identify himself or herself to the person who is the subject of such law enforcement activity by providing his or her name, rank and command; 2. Provide to such person an explanation of the reason for such law enforcement activity, unless providing such information would impair a criminal investigation; 3. Offer a business card to such person at the conclusion of any such activity that does not result in an arrest or summons.” It includes “Searches of persons or property, including vehicles” under the definition of “law enforcement activity.”

§ 87(2)(g)

§ 87(2)(g), the investigation recommends that **Allegation I** be closed as **substantiated**.

### Civilian and Officer CCRB Histories

- This is the first complaint in which § 87(2)(b) and § 87(2)(b) have been named parties (**BR13, BR14**).
- Lieutenant Vladimir Garcia has been a member of service for 17 years. He has been named the subject in 15 other CCRB complaints and 37 allegations, one of which has been substantiated § 87(4-b), § 87(2)(g)
  - 201207108 involved a substantiated allegation entry and/or search of premises. The NYPD imposed instructions.
  - § 87(4-b), § 87(2)(g)
- Detective Jonathan Perez has been a member of service for 12 years. He has been named the subject in five other CCRB complaints and 14 allegations, two of which have been substantiated:
  - 201509267 involves a substantiated allegation of property damaged. The NYPD recommended and imposed instructions.
  - 201704878 involves a substantiated allegation of entry and/or search of premises. The NYPD recommended and imposed formalized training.
  - § 87(2)(g)
- Police Officer Benjamin Roman has been a member of service for 10 years. He has been named the subject in 10 other CCRB complaints and 22 allegations, one of which has been substantiated:
  - 202101083 involves a substantiated allegation of refusal to process civilian complaint. The NYPD recommended and imposed command discipline A.
  - § 87(2)(g)

### Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On May 11, 2023, the Office of the New York City Comptroller confirmed that there has

not been a notice of claim filed regarding this incident (**BR15**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]

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Squad: 10

Investigator: Jessica Russo SI Jessica Russo 07/25/2023  
Signature Print Title & Name Date

Squad Leader: Maura R. Roche IM Maura R. Roche 12/18/2023  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date